

STATE OF NEW YORK

49--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- recommitted to the Committee on Finance in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend part LL of chapter 59 of the laws of 2018 amending the state finance law relating to establishing the charitable gifts trust fund and the health charitable account, and the elementary and secondary education charitable account, in relation to increasing the contribution cap to twenty million dollars

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds that
2 the charitable tax credit provides significant tax benefits to donors
3 contributing to the State University of New York Impact Foundation,
4 offering an eighty-five percent tax credit against New York state income
5 tax and a fifteen percent deduction against federal income tax. The
6 program has been highly successful in encouraging charitable donations
7 to the state university of New York (SUNY) system.

8 The legislature further finds that the City University of New York
9 (CUNY) system, including the City University of New York Research Foun-
10 dation, receives charitable contributions that support its educational
11 programs, research activities, and student services. Providing access to
12 the charitable tax credit will assist CUNY in attracting additional
13 private donations.

14 However, applications for the tax credit have exceeded the current ten
15 million dollar annual cap, which limits the ability to meet donor inter-
16 est and leverage further private contributions. In order to allow more
17 donors to participate and provide critical financial support to the SUNY
18 and CUNY systems, this legislation increases the annual cap of the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 program to twenty million dollars. This expansion will increase the
2 program's capacity to meet demand and support educational programs,
3 scholarships, research, and other institutional improvements.

4 § 2. Paragraph (e) of subdivision 1 of section 3 of part LL of chapter
5 59 of the laws of 2018 amending the state finance law relating to estab-
6 lishing the charitable gifts trust fund and the health charitable
7 account, and the elementary and secondary education charitable account,
8 is amended to read as follows:

9 (e) Contribution cap. The maximum permitted contributions under this
10 section available annually for calendar year two thousand eighteen [~~and~~
11 ~~all following years~~] through two thousand twenty-five shall be ten
12 million dollars and for calendar year two thousand twenty-six and all
13 following years shall be twenty million dollars for the SUNY foundation
14 and for calendar year two thousand eighteen and all following years
15 shall be ten million dollars for the CUNY foundation and for calendar
16 year two thousand twenty-six and all following years shall be twenty
17 million dollars for the city university of New York research foundation.

18 § 3. Reporting requirements. 1. The state university of New York
19 shall annually submit a report to the governor and the legislature on
20 the total charitable monetary contributions to the State University of
21 New York Impact Foundation. Such report shall include:

- 22 (a) The total amount of donations received;
- 23 (b) A breakdown by institution;
- 24 (c) The use of such funds; and
- 25 (d) The impact of these contributions on educational resources, schol-
26 arships, and other institutional improvements.

27 2. The city university of New York shall annually submit a report to
28 the governor and the legislature on the total charitable monetary
29 contributions to the city university of New York research foundation.
30 Such report shall include:

- 31 (a) The total amount of donations received;
- 32 (b) A breakdown by institution;
- 33 (c) The use of such funds; and
- 34 (d) The impact of these contributions on educational resources, schol-
35 arships, and other institutional improvements.

36 § 4. This act shall take effect on the first of January next succeed-
37 ing the date on which it shall have become a law.